

26PR00523 Matter of Charleen LaRue Albanese Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-14

Motion: Petition to Determine the Validity of the Power of Attorney and Modification of Trust

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Petition to Determine the Validity of the Power of Attorney and Modification of Trust

Tentative Ruling: The matter is CONTINUED to December 4, 2026 at 9:30 a.m. in Department 63 for the reasons set forth below.

The petition is not verified in strict compliance with California Code of Civil Procedure §2015.5. Substantial compliance with the verification statute is insufficient. See *Kulshrestha v. First Union Commercial Corp.*, (2004) 33 Cal.4th 601.

The response contains affirmative claims against the petitioner, including, but not limited to, a request for an accounting, a claim that the petitioner breached fiduciary duties, and a claim that the petitioner misappropriated the settlor-principal's property. These claims are not properly included in a response and are not properly before the Court. California Probate Code §1000(a) and California Code of Civil Procedure §431.30. The claims for affirmative relief should be raised by petition if the party wishes to pursue relief in connection with them.

As this is now a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues at least seven (7) court days in advance of the continued hearing in compliance with local rule 6.2.F.3. If the parties have not already done so, they should discuss whether an expert medical evaluation of the present cognitive state of the settlor should be performed, whether the settlor consents to such an examination and whether a guardian ad litem should be appointed for the settlor, and if so, who is nominated and willing to serve.